CLEVER MANDIZVIDZA N.O (EXECUTOR DATIVE)

Versus

C J BUILDING SERVICES (PVT) LTD

AND

CITY OF VICTORIA FALLS

AND

THE MINISTER OF LOCAL GOVERNMENT, RURAL AND URBAN DEVELOPMENT

AND

THE MASTER OF HIGH COURT OF ZIMBABWE

IN THE HIGH COURT OF ZIMBABWE
MOYO J
BULAWAYO 12 MARCH AND 22 MAY 2026

Opposed matter

Applicant in person
G Jakuvosi, for the 1st respondent
L Duve, for the 3rd respondent

MOYO J:- At the hearing of this matter 1st respondent raised a preliminary objection to the effect that there is a Memorandum of Understanding between the deceased and the council to the effect that the Magistrate's court would have jurisdiction and that therefore this matter should be struck off the roll.

The objection was overruled because the Memorandum of Understanding excluded 1st Respondent who is an interested party in these proceedings as well as the nature of the relief sought which is a declaratur that cannot be granted by the Magistrate's court. For convenience it is common cause that the agreements were signed by the Ministry if Local Government but were later assumed by the Municipality.

On the merits the facts are that the deceased was offered a lease of Stand 4705 Chinotimba T/Ship Victoria Falls on 9 September 1994 and the lease was due to expire on 22 September 2000. On 15 September 1994 deceased completed a certificate of occupation of same. 1st respondent was offered a lease during the subsistence of the deceased's lease.

1st respondent also pleaded that it is called Clever Jeche Building Services Pvt Ltd and not C J Building Services Pvt Ltd and that therefore a wrong party is before the court. However, clearly the agreement of lease 1st respondent relies on is also written C J Building Services Pvt Ltd meaning it may be a wrong entity legally but clearly the correct party is before the court albeit through a wrong citation. It means that 1st respondent does hold itself out as CJ Building Services Pvt Ltd in certain places although that is clearly not its name.

What is clear is that the lease given to the animal called C J Building Services Pvt Ltd on 19 February 2000 was given during the subsistence of the lease with the deceased. An untenable position at law rendering the 2nd lease agreement invalid. Council could not validly lease the same premises to 1st respondent without first cancelling the lease with deceased so there was no valid lease agreement between the council and 1st respondent.

I am not persuaded by the argument by 1st respondent's counsel that an Executor can not assume personal rights of the deceased because that is the very essence of acting for and on behalf of a deceased estate especially on contracts and leases to claim what is due to the estate and whatever personal obligations are owed to the estate.

Applicant argued that since 1st respondent says it is a legal entity called Clever Jeche Building Services Pvt Ltd and not C J Building Services Pvt Ltd, therefore there is no valid agreement of lease between council and the animal called CJ Building Services Pvt Ltd as it does not exist and one cannot contract with a non-existent party. I agree with applicant in this respect.

If there is no legal entity called CJ Building Services Pvt Ltd, then it follows that there is no legal status, no capacity to contract, simple. That this point was raised at the hearing does not matter because it is a matter of law, which is based on a fact already pleaded by 1st respondent and being part of the court record. I will accordingly declare that deceased did have rights to enforce to the circumstances.

I will accordingly find in favour of applicant. I thus order as follows:-

1) The Memorandum of Agreement entered into by and between the applicant and the 3rd respondent (Reg No. A/8772) is hereby declared to be the valid agreement, conversely, the agreement between 1st respondent and 3rd respondent (Ref No. A 6470/2000) is equally declared null and void.

2. 1st respondent to pay the costs of suit.

Mvhiringi and Associates, 1st respondent's legal practitioners
Civil Division of the Attorney General, 3rd respondent's legal practitioners